RENEWABLE ENERGY SERVICES AGREEMENT

DATED 27/8/2024

between

CROSSBOUNDARY ENERGY KENYA LIMITED
(as the "**Energy Services Provider"**)

and

AMPERSAND E-MOBILITY LIMITED
(as the "**Customer"**)

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THIS AGREEMENT is made between:

(A) **AMPERSAND E-MOBILITY LIMITED** registration number PVT-V7UY3REX, a company duly incorporated under the Laws of the Republic of Kenya (the "**Customer"**); and

(B) **CROSSBOUNDARY ENERGY KENYA LIMITED** registration number **PVT-JZUJ8Y7**, a company duly incorporated under the Laws of **THE REPUBLIC OF KENYA** (the "**Energy Services Provider"**).

BACKGROUND

A. The Customer seeks to provide a battery swap service for two wheeler electric vehicles ("**EV**") and requires a reliable source of renewable electricity to power its charging stations.

B. The Energy Services Provider is in the business of financing, developing, constructing, operating, maintaining solar PV facilities and leasing battery energy storage equipment to commercial entities.

C. Both parties recognize the economic and environmental benefits of renewable energy sources and are committed to fostering a sustainable energy future.

D. The Energy Services Provider wishes to purchase and lease the Battery Equipment and the Customer wishes to exclusively rent the Battery Equipment on the terms and conditions contained herein.

E. The Energy Services Provider further wishes to sell and the Customer wishes to exclusively purchase energy generated by the Solar PV Facility on the terms and conditions contained herein.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires, the capitalised terms used in this Agreement shall have the meanings given to them below:

1.1.1 **Additional Energy Output** means any additional Energy, up to 4,000kWh (and in excess of the Minimum Energy Output), delivered by the Facility to the Delivery Point.

1.1.2 **Affiliates** means, in respect of a person, any person which controls (directly or indirectly) that person and any other person Controlled (directly or indirectly) by such first mentioned person, including, where a person is a company, the ultimate holding company of such person, any holding company of such person and any subsidiary (direct or indirect) of such holding company.

1.1.3 **Agreement** means this renewable energy services agreement including the schedules or annexes to it.

1.1.4 **Authorisation** means any approval, consent, licence, permit, authorisation, resolution, certificate or other permission granted or to be granted by a Government Authority required under any applicable Law for the enforcement of rights or performance of obligations under this Agreement, including those authorisations listed in Schedule 8 (Authorisations).

1.1.5 **Battery Equipment** means:

(a) 150 No. 3.8 kWh battery storage equipment comprising of electric vehicle grade Lithium Iron Phosphate (LFP) battery with a usable capacity of 45Ah rated 72V.

(b) the Charging Station.

1.1.6 **Business Day** means any Day other than a Saturday or a Sunday or an official public holiday in Kenya.

1.1.7 **Customer Authorisations** means those Authorisations to be obtained by the Customer, with support from the Energy Services Provider, as listed in Schedule 8 (Authorisations).

1.1.8 **Customer Risk Event** means any delay or default by the Customer in performing any of its obligations under this Agreement, but only if and to the extent that:

(a) such delay or default is not remedied during the remedy period provided in this Agreement;

(b) such delay or default is not the direct or indirect result of: (i) a breach by the Energy Services Provider or its Contractors of any of its obligations under this Agreement; or (ii) a Force Majeure Event ; and

(c) the Energy Services Provider has used all reasonable efforts to reduce or procure the reduction to a minimum and mitigate the effect of such event or circumstance;

1.1.9 **Capacity** means in respect of the Facility, at any time and from time to time, the capability (expressed in MW_{AC}) of the Facility to generate and deliver Energy to the Delivery Points.

1.1.10 **Change in Law** means the occurrence of any of the following events after the Signature Date:

(a) the introduction, adoption, enactment or promulgation of any new applicable law by any government authority or any change in the interpretation or application of any applicable Law, save for any of the aforementioned resulting in an increase in corporate income taxes of general application which does not discriminate against the Energy Services Provider or against the Energy Services Provider and other parties undertaking projects similar to the Project; and/or

(b) the change or repeal of any applicable Law, save for any of the aforementioned, resulting in an increase in corporate income taxes of general application which does not discriminate against the Energy Services Provider or against the Energy Services Provider and other parties undertaking projects similar to the Project; and/or

(c) the introduction, adoption, or change of any authorisation or any material condition in connection with the issuance, renewal or modification of any authorisation or Customer's Policies; and/or

(d) any change to the terms and conditions or to the interpretation or application of any authorisation or addition of new terms and conditions after granting said authorisation; and/or

(e) the revocation, repeal or cessation of effectiveness of any authorisation prior to the expiration date of such authorisation, provided that the relevant Party is in compliance with the material requirements and conditions established therein or if any authorisation was granted for a limited period its non-renewal (or its renewal in terms or subject to conditions less favourable to the relevant Party), provided that such Party has observed all the requirements applicable to the grant of that renewal; and

(f) the occurrence of the event:

(i) renders it unlawful to give effect to this Agreement; or

(ii) has a material adverse financial impact on the Project or materially and adversely affects the Commercial Intent or overall balance of liability and risk agreed to by the Parties in this Agreement; and

(iii) is an event in respect of which the Energy Services Provider is not entitled to any other relief pursuant to any other provisions of this Agreement; and

(iv) was not reasonably foreseen by the Energy Services Provider on or before the Signature Date or if it was foreseen, the impact on the Project was not reasonably foreseen.

1.1.11 **Charging Station** means the enclosed and secure structure, equipped with charging infrastructure, designed to safely store and maintain a fleet of rechargeable EV batteries;

1.1.12 **Commercial Operation Date** or **COD** means the date on which the Energy Services Provider notifies the Customer that the Solar PV Facility has been completed and successfully passed the commissioning tests.

1.1.13 **Contracted Capacity** means the anticipated Capacity of the Solar PV Facility at the Delivery Point and expressed as AC power. The Contracted Capacity is anticipated to be 36kW AC at a Power Factor of Unity(1) . For the avoidance of doubt, Contracted Capacity shall be net of auto-consumption and the electrical losses up to the Delivery Points.

1.1.14 **Contract Year** means each 12 Month period, commencing at the Commercial Operation Date and ending at the expiry of that 12 Month period, and the last Contract Year shall be the period commencing from the anniversary of the Commercial Operation Date of the year this Agreement is terminated or expires to and including the date on which this Agreement is terminated or expires;

1.1.15 **Contractor(s)** means the EPC Contractors or the O&M Contractors (as may be applicable) and their respective subcontractors and/or equivalent arrangements in respect of the construction and operation of the Solar PV Facility.

1.1.16 **Curtailment** means a decision by the Customer and/or any other action by the Customer directed or caused by, as the case may be, resulting in a reduction of Energy Output of the Solar PV Facility.

1.1.17 **Day** means a period of 24 Hours beginning at 00:00 hours on a day and ending at 24:00 hours on that day.

1.1.18 **Delivery Point** means the physical point(s) where the Energy Output is to be delivered by the Energy Services Provider to the Customer, as set out in Schedule 3 (Meter Specification).

1.1.19 **Effective Date** means the date falling 14 Business Days after the date of fulfilment of the suspensive conditions set out in Clause 2.1 below.

1.1.20 **Enabling Works** means pre-construction works to be conducted by the Customer to enable the Energy Services Provider to begin execution, as set out in Schedule 7.

1.1.21 **Energy** means electrical energy (measured in kWh) produced by the Solar PV Facility pursuant to the terms of this Agreement.

1.1.22 **Energy Output** means the sum of Energy (expressed in kWh) generated by the Solar PV Facility and delivered to the Delivery Points

1.1.23 **Energy Services Provider Assets** means those assets that are the property of the Energy Services Provider pursuant to applicable Law, which arise or derive from the Project, including all raw materials, consumable and spare parts, all tangible personal property (including patents, patent licences, patent applications, trade names, trademarks, trademark registrations and applications, trade secrets, copyrights, know-how and any other intellectual property rights), all intangible personal property, computerised and non-computerised records, reports, data, files and information and all insurance policies and rights with respect to any insurance proceeds payable to or for the account of the Energy Services Provider.

1.1.24 **Energy Services Provider Authorisations** means those Authorisations to be obtained by the Energy Services Provider, with support from the Customer (as may be necessary), as listed in Schedule 8 (Authorisations).

1.1.25 **Environmental Credits** means the voluntary emission reductions and certified emissions reductions (if any) issued to the Project pursuant to (i) the Kyoto Protocol of the United Nations Framework Convention on Climate Change; (ii) any voluntary mechanisms for issuing emission reductions; and (iii) any carbon offset and/or programme available in Kenya.

1.1.26 **Environmental Obligations** means any and all obligations, liabilities and/or penalties that may be imposed in terms of any applicable environmental authorisations, or environmental laws of Kenya in relation to the construction and operation of the Solar PV Facility, including the requirement to make financial provision for rehabilitation of the Project Site (but excluding the obligations relating to any livelihood restoration and relocation plan in respect of the Project Site).

1.1.27 **Environmental Offsets** means any allowance, benefit, credit, relief or other legal right (including in relation to carbon taxes or credits or greenhouse gas emissions) allocated to or generated by the Project pursuant to applicable law, including any certified emission reduction credit.

1.1.28 **Escrow Account** has the meaning set out in Clause 6.3.1

1.1.29 **Force Majeure** or **Force Majeure Events** means an event or circumstance or condition or combination of events or circumstances that: (i) is not reasonably foreseeable as of

the date hereof, (ii) is not within the reasonable control , directly or indirectly, of the Party affected by the event and that materially and adversely affects the ability of the affected Party to perform any of its obligations under this Agreement, but only to the extent that:

(a) it is not the result of such Party's negligence or failure to act and is not the direct or indirect result of a breach by the affected party of any of its obligations under this Agreement;

(b) could not be avoided or overcome by the affected Party's use of due diligence in the circumstances, and/or

(c) prevents, hinders or delays the affected Party in its performance of all (or part) of its obligations under of this Agreement (other than payment obligations).

Force Majeure is limited to the following events (but only to the extent that such an event, in consideration of the circumstances, satisfies the (a) to (c) above):

(i) natural disasters such as drought, earthquake, volcanic eruption, landslide, flood, storm, lightning strike, cyclone, tornado, typhoon, or other natural disasters or act of God;

(ii) fire, explosion, tempest, flood, drought, famine, ionising radiation, riot, and civil commotion;

(iii) pandemics, epidemics, quarantine, embargo, blockade or outbreaks that affect the construction or operation of the Solar PV Facility;

(iv) any official or unofficial national strike, lockout, go-slow, or other such labour disputes, which shall include any strikes affecting the power sector generally in [Kenya], but excluding any strikes or equivalent action undertaken solely by the Parties' or their Contractors' employees, contractors or personnel;

(v) war or civil war (whether declared or undeclared), armed conflicts or terrorism;

(vi) nuclear contamination;

(vii) air crash, shipwreck, train wreck or major failure or stoppage of transportation, objects falling from aircraft or other aerial devices or sonic boom;

(viii) chemical or biological contamination of the Solar PV Facility and/or the property as a result of any of the events referred to above;

(ix) expropriation of the Project Site or part thereof;

(x) a Site Owner System Event; or

(xi) any unforeseeable delay which has continued for a period of six (6) consecutive months, in obtaining any local or national government approval, license, concession or other such required government action, provided that the claiming Party has duly and timeously applied for and complied with all of its obligations in respect of the obtaining of such approval and has diligently pursued all recourse in accordance with Good Industry Practice.

1.1.30 **Generation Licence** means the authorisation to be procured in respect of the Project or parts thereof granted by the Energy and Petroleum Regulatory Authority, to the Energy Services Provider, and/or any amendment or modification of the Customer's existing Generator authorisation as applicable.

1.1.31 **Grid** means the interconnected national network for transporting and supplying electricity in Kenya.

1.1.32 **Good Industry Practice** means, at a particular time those practices, methods, equipment, specifications and standards of safety and performance and acts as are employed by experienced international contractors or operators in the electricity generation and battery storage industry engaged in the same type of undertaking under the same or similar circumstances and conditions, which in the exercise of reasonable judgement in light of the facts known at the time the judgement was made, having complied with all applicable Laws and authorisations, are considered good, safe and prudent practice commensurate with standards of safety, performance, dependability, efficiency and economy.

1.1.33 **Government Authority** means any ministry or department, any minister, any organ of state, any official in the public administration or any other governmental or regulatory department, commission, institution, entity, service utility, board, agency, instrumentality or authority (in each case whether national, provincial, or municipal) or any court, each having jurisdiction over the matter in question, in the Republic of Kenya.

1.1.34 **Insolvency Event** means, in respect of either Party, the occurrence of any one or more of the following events:

(a) it is, or is deemed for the purposes of any applicable law to be, unable to pay its debts as they fall due or insolvent (in each case other than solely as a result of its balance sheet liabilities exceeding its balance sheet assets);

(b) it admits its inability to pay its debts as they fall due;

(c) a moratorium is declared in respect of any of its indebtedness;

(d) any declaration of a moratorium or a composition, assignment or similar arrangement with any of its creditors, due to its inability to pay its debts;

(e) the passing of a resolution by its shareholders, directors or other officers for the purpose of considering any resolution for, to petition for or file documents with a court or any registrar for its winding-up, administration or dissolution, or any such resolution is passed (other than in connection with a solvent reorganisation);

(f) any person presents a petition, or files documents with a court or any registrar, for its winding-up, administration or dissolution, unless it is a petition for winding-up presented by a creditor which is being contested in good faith and with due diligence and is discharged or struck out within 60 Days;

(g) an order for its winding-up, administration or dissolution is made (other than in connection with a solvent reorganisation);

(h) any liquidator, business rescue practitioner, trustee in bankruptcy, compulsory manager, receiver, administrative receiver, administrator or similar officer is appointed in respect of it or any of its assets;

(i) its directors, shareholders or other officers pass a resolution of their intention to appoint a liquidator, business rescue practitioner, trustee in bankruptcy, compulsory manager, receiver, administrative receiver, administrator or similar officer; or

(j) any other analogous step or procedure is taken in any jurisdiction;

1.1.35 **Interconnection Facilities** means the electrical connection infrastructure required to connect the Solar PV Facility to the Delivery Points as further detailed in Schedule 2 (Functional Specification of Project and Interconnection Facilities);

1.1.36 **Interest Rate** means 90-day SOFR rate +2%.

1.1.37 **Law** means

(a) any act, regulation or other statutory instrument or proclamation of any applicable jurisdiction in which any act or obligation in connection with this Agreement is or is to be carried out or regulated;

(b) any law, whether of a Constitutional, legislative or common law nature;

(c) any applicable standards and codes;

(d) any judgement, decree or similar order with mandatory effect or any binding requirement or mandatory approval of a Government Authority, including any government approval; and

(e) the rules, requirements and procedures of any green benefit scheme.

1.1.38 **Lenders** means any third-party lender, any financial institution or investor extending funding to the Energy Services Provider for the purpose of the Project, and any agent acting on their behalf;

1.1.39 **Liabilities** means claims, damages, costs, debt or liabilities whatsoever (including contingent liabilities).

1.1.40 **License** means the agreement between the Site Owner and the Energy Services Provider that sets out the terms under which the Energy Services Provider is allowed to enter and use the Project Site(s).

1.1.41 **Longstop Date** means the date that is three months after the Scheduled COD as the same may be revised from time to time in accordance with the terms of this Agreement.

1.1.42 **Main Meters** means the energy meter (and all associated equipment), part of the Metering System, installed by the Energy Services Provider on the Energy Services Provider's side of each Delivery Point used to measure and record Energy Output.

1.1.43 **Metering System** means, together, the Main Meter and the Power Quality Meters (to the extent not incorporated in the Main Meter).

1.1.44 **Minimum Energy Output** means a minimum energy output of 51,500 kWh per annum, delivered by the Solar PV Facility to the Delivery Points, or was available to be delivered by the Solar PV Facility to the Delivery Points, but for a Customer Risk Event in accordance with the terms of this Agreement.

1.1.45 **Performance Liquidated Damages** means the difference between the Tariff and the price at which the Customer can purchase a kWh from the Grid multiplied by the Performance Shortfall in kWh.

1.1.46 **Performance Shortfall** means the difference between number of kWh generated and delivered to the Delivery Point and the Minimum Energy Output, measured in kWh and excluding any non-performance caused by a Customer Risk Event, Site Owner System Event or Force Majeure Event.

1.1.47 **Power Factor** means the ratio of real power to apparent power. For the avoidance of doubt, the Solar PV Facility shall deliver power at the delivery point at a power factor of 1 (unity).

1.1.48 **Power Quality Meter** means the meter that measures the characteristics of the electricity at a given point on an electrical system, evaluated against a set of reference technical parameters as set out in Schedule 3 (Meter Specifications).

1.1.49 **Project** means, *inter alia*, the development, financing, ownership, design, construction, commissioning, operation and maintenance of the Solar PV Facility and leasing of the Battery Equipment.

1.1.50 **Project Site(s)** means the area(s) within the land licensed by the Site Owner upon which the Solar PV Facility is to be constructed and operated as depicted in Schedule 1(Project Site).

1.1.51 **Ramp-up Period** with respect to the Solar PV Facility, shall commence on COD and extend for a period of six (6) months.

1.1.52 **Reactive Energy Output** means reactive energy (expressed in kilovarhours) as measured at the Delivery Point, being the product of voltage and current and the sine of the phase angle between them integrated over any time period.

1.1.53 **Scheduled COD** means the date falling 4 Months after the Effective Date in respect of the Solar PV Facility as such date may be revised from time to time in accordance with the terms of this Agreement.

1.1.54 **Scheduled Outage** means a full or partial interruption of the generating capability of the Solar PV Facility for planned maintenance in accordance with Clause 9.3.1.

1.1.55 **Signature Date** means the date of signature of this Agreement by the Party last in time to do so.

1.1.56 **Site Owner System Event** means any constraint, unavailability, interruption, from the Site Owner under the License which makes the Energy Services Provider unable to meet its obligations under this Agreement , only if and to the extent that such act, event or

circumstance is not the direct or indirect result of (i) a breach by the Energy Services Provider of any of its obligations under the License or (ii) any act or omission by the Energy Services Provider or its Contractors, or (iii) a Force Majeure Event affecting the Energy Services Provider.

1.1.57 **Solar PV Facility** means a 36.8 kWp solar photovoltaic facility to be constructed, owned, operated, maintained and managed by the Energy Services Provider on the intended Project Site and comprising of all plant, machinery and equipment, all associated buildings, structures, roads on the Project Site that are not national, provincial or municipal roads, and other appurtenances.

1.1.58 **Surviving Provisions** means Clauses 1 (Definition and Interpretation), 7.5 (Project Site), 15.3.2 (Indemnities), 12 (Transfer or Decommissioning), 17 (Dispute resolution), 20 (Miscellaneous Provisions), Schedule 6 (Termination Payments) Clause 12 (Transfer or Decommissioning) and any other provisions of this Agreement which are expressed to continue in force after termination or which by necessary implication must continue after termination.

1.1.59 **Supplier** shall mean Ampersand E-Mobility Limited, the entity responsible for supplying the Battery Equipment, as set forth in a supply agreement to be executed on or after the date of this Agreement.

1.1.60 **Tariff** means the amounts set out in Clause 3.2.1(b).

1.1.61 **Term** has the meaning set out in Clause 2.4.

1.1.62 **Unscheduled Outage** means any Outage that is not a Scheduled Outage and that is not caused by a Force Majeure Event, a Site Owner System Event or a Customer Risk Event.

1.1.63 **USD** means United States dollars.

1.2 **Interpretation**

1.2.1 In this **Agreement**:

(a) references to a statutory provision include any subordinate legislation made from time to time under that provision and include that provision as modified or re-enacted from time to time;

(b) words importing the masculine gender include the feminine and neuter genders and vice versa; the singular includes the plural and vice versa; and natural persons include artificial persons and vice versa;

(c) references to a **person** include a natural person, company, close corporation or any other juristic person or other corporate entity, a charity, trust, partnership, joint venture, syndicate, or any other association of persons;

(d) references to a **subsidiary** or a **holding company** shall be references to a subsidiary or holding company as defined in the Companies Act;

(e) if a definition imposes substantive rights and obligations on a Party, such rights and obligations shall be given effect to and shall be enforceable, notwithstanding that they are contained in a definition;

(f) any definition, wherever it appears in this Agreement, shall bear the same meaning and apply throughout this Agreement unless otherwise stated or inconsistent with the context in which it appears;

(g) if there is any conflict between any definitions in this Agreement then, for purposes of interpreting any clause of this Agreement or paragraph of any Schedule, the definition appearing in that clause or paragraph shall prevail over any other conflicting definition appearing elsewhere in this Agreement;

(h) where any number of Days is prescribed, those Days shall be reckoned exclusively of the first and inclusively of the last Day unless the last Day falls on a Day which is not a Business Day, in which event the last Day shall be the next succeeding Business Day;

(i) where the Day upon or by which any act is required to be performed is not a Business Day, the Parties shall be deemed to have intended such act to be performed upon or by the next succeeding Business Day;

(j) any provision in this Agreement which is or may become illegal, invalid or unenforceable in any jurisdiction affected by this Agreement shall, as to such jurisdiction, be ineffective to the extent of such prohibition or unenforceability and shall be treated as having not been written and severed from the balance of this Agreement, without invalidating the remaining provisions of this Agreement or affecting the validity or enforceability of such provision in any other jurisdiction;

(k) the use of any expression covering a process available under English law (such as but not limited to a winding-up) shall, if any of the Parties is subject to the law of any other jurisdiction, be interpreted in relation to that Party as including any equivalent or analogous proceeding under the law of such other jurisdiction;

(l) references to any amount shall mean that amount is exclusive of VAT, unless the amount expressly includes VAT; and

(m) the rule of construction that if general words or terms are used in association with specific words or terms which are a species of a particular genus or class, the meaning of the general words or terms shall be restricted to that same class shall not apply, and whenever the word including is used followed by specific examples, such examples shall not be interpreted so as to limit the meaning of any word or term to the same genus or class as the examples given.

1.2.2 The expiration or termination of this Agreement shall not affect such of the provisions of this Agreement which are expressly provided to operate after any such expiration or termination, or which of necessity must continue to have effect after such expiration or termination, notwithstanding that the relevant provisions themselves do not provide for this.

1.2.3 Each of the provisions of this Agreement has been negotiated by the Parties and drafted for the benefit of the Parties, and accordingly the rule of construction that the contract shall be interpreted against or to the disadvantage of the Party responsible for the drafting or preparation of this Agreement, shall not apply.

2. EFFECTIVE DATE AND TERM

2.1 The provisions of this Agreement (other than the Surviving Provisions which shall be unconditional and of immediate force and effect on and with effect from the Signature Date), are subject to the fulfilment or waiver of the suspensive conditions that:

2.1.1 the Energy Services Provider has obtained credit committee approval for this Project and has provided the Customer with a copy of the committee's resolution; and

2.1.2 the Customer has delivered valid and enforceable Payment Security to the Customer; and

2.1.3 The Energy Services Provider has paid the battery and charging station costs to the Supplier within 15 days of 2.1.1 and 2.1.2 being satisfied.

2.2 The Parties shall use reasonable endeavours to reach the Effective Date within 14 business days of Signature Date of this Agreement. In the event that the Effective Date has not been reached by the date specified, and the Parties have not agreed in writing to extend the date, or waive the suspensive condition either Party may terminate this Agreement by providing written notice to the other.

2.3 If this Agreement is terminated under Clause 2.1.2:

2.3.1 neither Party will be liable to the other for any cost, loss, damage or expense arising out of or in connection with this Agreement;

2.3.2 those terms of the Agreement which survive termination will continue to be binding on the Parties;

2.3.3 all other terms and conditions of this Agreement will terminate immediately and have no further effect.

The initial term of this agreement shall be seven (7) years from the Effective Date ("Initial Term"). Following the Initial Term, this agreement shall automatically renew for two (2) successive terms of 7 years each ("Renewal Term") unless terminated in accordance with the provisions herein (together the "**Term**").

2.4 In the event that the Customer does not to renew this Agreement at the end of any seven (7) year term, the Customer shall be required to:

2.4.1 purchase the PV Facility at fair market value, as determined by an independent appraisal agreed upon by both parties; or

2.4.2 transfer its rights and obligations under this Agreement to the Site Owner or any agreed third party, subject to the approval of Energy Services Provider (which approval shall not be unreasonably withheld).

2.5 **Notice of Non-Renewal**: Any decision regarding the non-renewal of this Agreement and the exercise of the aforementioned options shall be made in writing and communicated to the Energy Services Provider no less than six months prior to the expiration of the then-current term.

2.6 The Customer has the option, exercisable by providing to the Energy Services Provider a notice no later than 12 months prior to the expiration of the Term, to extend the Term of either the purchase

of the power from the Solar PV Facility or the lease of the Battery Equipment (as applicable) for an additional 4 years. The Parties shall negotiate in good faith for a period of no longer than 30 Days, save as may be extended by Agreement of the Parties, on the adjusted tariff to be payable by the Customer for the extended term. If the Parties fail to agree with the 30-Day period or as extended by both Parties, the Term shall not be extended.

2.7 Upon extension of the Term, the commercial intent shall be maintained and, save as may be agreed between the Parties, all other terms and conditions of this Agreement shall remain the same and an appropriate amendment of this Agreement shall be entered into to reflect the extension of the Term.

3. PURCHASE AND SALE OF ENERGY

3.1 Ramp-up Period

3.1.1 Subject to the terms and conditions of this Agreement and during the Ramp-up Period, the Customer shall bear no obligation to acquire the Minimum Energy Output generated by the Solar PV Facility. The Customer shall only be liable for payment with respect to the Energy Output consumed by the Customer.

3.1.2 During the Ramp-up Period, the Energy Services Provider will be under no obligation to deliver the Minimum Energy Output.

3.2 Energy Output

3.2.1 Subject to the terms and conditions of this Agreement and following the expiry of the Ramp-up Period up to and including the last Day of the Term, the Energy Services Provider shall sell exclusively to the Customer, and the Customer shall purchase:

(i) the Minimum Energy Output at a rate of USD 0.14 per kWh delivered from the Solar Facility; and

(A) if the Energy Services Provider is for any reason, other than a Customer Risk Event, Site Owner System Event or Force Majeure Event, not able to generate and deliver the Minimum Energy Output, the Minimum Energy Output will be reduced accordingly;

and,

(ii) any Energy Output consumed by the Customer, at the Customer's election, in excess of the Minimum Energy Output, at a rate of USD 0.14 per kWh delivered from the Solar PV Facility;

(the "**Tariff**").

3.2.2 The Tariff shall escalate annually at a rate of 2%. The Tariff base date is the Signature Date of this Agreement.

3.2.3 The Parties acknowledge that the Solar PV Facility may only provide a portion of the Customer's EV charging electricity demand. The Customer is permitted to procure its remaining EV charging electricity requirements from the Grid (where required).

4. DELIVERY

4.1 Delivery Points

4.1.1 The Energy Services Provider shall deliver the Energy Output to the Customer at the Delivery Points, as set out in Schedule 2 (Functional Specification).

4.1.2 The Energy Services Provider shall be responsible for the financing and procurement of the Interconnection Facilities. The installation and interconnection of the Charging Station after the Delivery Point shall be the responsibility of the Customer.

4.2 Transfer of Risk and Title

4.2.1 Transfer of risk and title with respect to the Energy Output shall pass to the Customer at the Delivery Points.

5. LEASE OF BATTERY EQUIPMENT

5.1 Rent

5.1.1 The Energy Services Provider agrees to lease to the Customer, and Customer agrees to lease from Energy Services Provider, the Battery Equipment in accordance with the terms of this Agreement.

5.1.2 The Customer shall pay as fixed rent for the Term of this Agreement in the amount of USD 4,605.00 ("**Rent**"). The Rent shall escalate annually at a rate of 2%.

The **Rent** assumes the present fiscal regime (as of May 2024) for EV and solar components is maintained. The Customer will be liable for covering any duties or hard taxes if current exemptions are removed by the Government of Kenya.

5.2 Replacement of Batteries

5.2.1 Pursuant to the terms and conditions of this Agreement, the Energy Services Provider shall be obligated to undertake the periodic replacement of the Battery Equipment at intervals of no longer than eight (8) years throughout the entire duration of the contractual Term.

5.2.2 At the end of the Term, the Customer shall handover the Battery Equipment and any parts thereof to the Energy Services Provider, in good working condition subject only to the reasonable effects of wear and tear typical for the Battery Equipment.

5.2.3 The Customer grants the Energy Services Provider a right of first refusal to finance any additional EV batteries required for the Project. If the Customer receives a bona fide offer from a third party, they must notify the Energy Services Provider in writing, providing the terms and conditions of the offer.

5.2.4 Upon receiving this notice, the Energy Services Provider will have twenty-one (21) days to notify the Customer of their intention to match the offer and finance the additional batteries on the same or similar terms ("**Exercise Period"**).

5.2.5 If the Energy Services Provider does not exercise this right within the specified period, the Seller/Owner may accept the bona-fide offer from the third party on the same terms.

If the sale to the third party is not completed within sixty(60) days after the expiry of the Exercise Period, the right of first refusal will be reinstated.

5.3 **Conditions of Lease**

5.3.1 The Customer acknowledges and agrees that it is obligated to primarily charge the leased Battery Equipment using the electricity generated by the Solar PV Facility owned and operated by the Energy Services Provider, to the extent such electricity is available for battery charging purposes.

5.3.2 In instances where the electricity generated by the Solar PV Facility is insufficient or unavailable for battery charging purposes, the Customer may utilize electricity from the Grid for charging the leased batteries, but only as a secondary and supplementary source of power.

5.4 **Ownership**

5.4.1 The Customer shall not have or acquire any title in or to the Battey Equipment and title shall remain with the Energy Services Provider at all times.

5.5 **Care and Use of Equipment**

5.5.1 In all other respects, except for damage or repairs due to the acts or omissions of the Energy Services Provider or its employees, agents or contractors, the Customer shall, at its own cost and expense, maintain the Battery Equipment in good operating condition, repair and appearance, and the Customer shall protect the same from deterioration, other than normal wear and tear. The Customer shall use the Battery Equipment in the regular course of business only, within its normal capacity, without abuse, and in the manner contemplated by the parties as of the date of this Agreement.

5.5.2 The Customer acknowledges and agrees that the Battery Equipment is subject to the original equipment manufacturers' ("**OEM**") warranties and specifications. The Customer shall be responsible for ensuring that the Battery Equipment is used, operated, and maintained in strict accordance with the OEM's requirements and guidelines, as set forth in the OEM's manuals as set out in Schedule [·].

5.5.3 The Customer shall not make any modification, alteration, or addition to the Battery Equipment (except with the written consent of the Energy Services Provider in). Neither the Customer nor any of its employees, agents or representatives shall tamper with, disassemble, revise, engineer or otherwise examine the manual workings of the Battery Equipment. If through the negligence of the Customer or the breach of this Agreement by the Customer repairs are required of the Energy Services Provider, then Customer shall reimburse Energy Services Provider for all reasonable costs incurred by Energy Services Provider in making such repairs or performing such maintenance, if Customer has not made such repairs or performed such maintenance within a reasonable time following Energy Services Provider's written notice to Customer.

5.6 **Loss or Damage to Battery Equipment**

5.6.1 The Customer shall assume full and sole responsibility for the safety of the Battery Equipment leased under this agreement. The Customer assumes the entire risk of the

Battery Equipment or any part thereof being lost, damaged, destroyed or being otherwise unfit or unavailable for use from any cause whatsoever (an "**Event of Loss**").

5.6.2 If an Event of Loss shall occur with respect to the Battery Equipment or any part thereof, the Customer shall promptly notify the Energy Services Provider of that fact in writing. Except to the extent caused by the acts or omissions of the Energy Services Provider or arising out of a breach of this Agreement by Energy Services Provider, if an Event of Loss has occurred, the Customer, at its option, shall:

(a) promptly repair the Battery Equipment or any part thereof to return it to good working order, which must condition and repair must be approved by the Energy Services Provider (acting reasonably); or

(b) replace the Battery Equipment or any part thereof with like Battery Equipment of the same or later model (upon the Energy Services Provider written approval), in good condition and working order, free and clear of all liens and encumbrances and such replacement shall be substituted in this Agreement by appropriate amendment; or

(c) pay the Energy Services Provider the replacement value, per Schedule 6.

5.6.3 No loss or damage to the Battery Equipment or any part thereof shall affect or impair the obligations of the Customer hereunder which shall continue in full force and effect.

5.7 **Limited Warranty**

5.7.1 The Energy Services Provider warrants that the Battery Equipment shall meet the description and criteria described in Schedule 8.

5.7.2 The Energy Services Provider further warrants that: the Battery Equipment shall be (i) of the same or higher quality than the specifications, set out in Schedule 2, (ii) fit and sufficient for the purpose disclosed by Energy Services Provider and (iii) free from defect.

5.7.3 If the Customer identifies a defect in the Battery Equipment or any part thereof, the Customer shall notify the Energy Services Provider of such defect within 5 days. Upon receipt of such notice, the Energy Services Provider shall replace the defective Battery Equipment of part thereof in accordance with the OEM warranties package provided that the defect is not caused by the acts or omissions of the Customer.

5.8 **Licence over Charging Station Software**

5.8.1 The Energy Services Provider acknowledges that the Customer, as the legal owner of the Intellectual Property (IP) related to the batteries, shall retain full ownership of any such IP, including but not limited to any software or technology provided by the Customer for the purpose of operating the Charging Station.

5.8.2 However, the Energy Services Provider shall hold a right to use any Intellectual Property rights developed by the Energy Services Provider, including any software or technology devised specifically for the operation of the Charging Station. If any Intellectual Property is jointly developed by both Parties, the ownership and usage rights shall be determined through mutual agreement and documented in writing.

5.8.3 For the Term of the contract, the Customer acknowledges that the Energy Services Provider, being the legal owner of the Charging Station, shall hold a perpetual licence over the use of any Intellectual Property rights developed by the Customer including but not limited to any software devised for the purpose of operating the Charging Station.

5.9 **Inspection of Battery Equipment**

5.9.1 The Energy Services Provider, its employees and/or agents shall at all times have access to the Equipment for the purpose of inspecting it. The Customer shall not, without the prior written consent of the Energy Services Provider, make any alterations, additions or improvements to the Battery Equipment. All such alterations or improvements so made shall belong to and remain the property of Energy Services Provider.

5.10 **Compliance with Laws and Regulations**

5.10.1 The Customer shall comply with and conform to all laws, regulations and licence conditions present or future, in any way relating to the ownership, possession, use or maintenance of the Battery Equipment throughout the term of this lease and to the full and complete discharge from liability of the Energy Services Provider.

5.10.2 The Customer shall comply with all the Site Owner's requirements under the License.

5.10.3 The Energy Services Provider shall not be liable for any special or consequential damages resulting from any act or omission of Energy Services Provider under this lease.

5.11 **Battery Equipment to be Kept Free of Levies, Liens, Charges, etc.**

5.11.1 The Customer shall keep the Equipment free of levies, privileges, liens and encumbrances and shall pay all licence fees, registration fees, assessments, charges and taxes (municipal, provincial and national) which may be levied or assessed, directly or indirectly, against or on account of the Battery Equipment or any interest thereon or use thereof.

5.11.2 If the Customer fails to pay any such licence fees, registration fees, assessments, charges or Taxes, the Energy Services Provider may pay the same, in which event the cost thereof shall be forthwith due and payable by the Customer.

6. PAYMENTS AND BILLING

6.1 **Payments and Billing**

6.1.1 The Customer shall pay to the Energy Services Provider a total monthly fee calculated as follows:

(a) with respect to the sale of energy from the Solar PV Facility an amount equal to the Tariff multiplied by Energy Output supplied to the Customer in that month; and

(b) with respect to the lease of the Battery Equipment, the Rent

together (the "**Payment**").

6.1.2 The Energy Services Provider shall deliver to the Customer, within five (5) Days of the end of the month, an itemised invoice showing the amount due in US Dollars and payable in accordance with clause 6.1.1 above (each, an "**Invoice**").

6.1.3 Each Invoice shall be due and payable by the Customer within thirty (30) Days of the end of the month within which the Invoice was received by the Customer or, if such due date is not a Business Day, the next succeeding Business Day (each such date, a "**Payment Date**").

6.1.4 Unless otherwise agreed by both Parties in writing, the Payment will be made by the Customer in US Dollars.

6.1.5 Delays in the issuance of any such Invoice will not constitute any waiver of the Customer's obligation to pay, or the Energy Services Provider's right to collect, any payment due under this Agreement.

6.1.6 The Customer shall be entitled to set off any Performance Liquidated Damages from the payments due to the Energy Services Provider in terms of this Agreement.

6.1.7 Interest

(a) If the Customer fails to pay the amount owing under this Agreement by the Payment Date, it shall be required to pay interest on the amount due to the Energy Services Provider notwithstanding the exercise by the Energy Services Provider of any other remedy available to it.

(b) The interest:

(i) shall accrue daily at the Interest Rate for each day from the day on which the amount became due and payable until but excluding the day on which that amount (together with accrued interest) is paid by the Customer to the Energy Services Provider; and

(ii) is payable on the first Business Day of each month, is calculated on actual days elapsed on a 365 day year and is capitalised on the first Business Day of each month after the due date for payment of such interest if not paid when due.

6.1.8 Reconciliation of Minimum Energy Output

(a) At the end of each Contract Year, the Energy Services Provider shall provide the Customer with a statement of reconciliation of the Minimum Energy Output.

(b) If the Energy Services Provider did not, for any reason, other than a Customer Risk Event, Site Owner System Event or Force Majeure Event, generate and deliver the

Minimum Energy Output, the Energy Services Provider shall pay the Customer the applicable Performance Liquidated Damages.

(c) If the Customer has not consumed at least the Minimum Energy Output, provided the Minimum Energy Output was produced by the Energy Services Provider, the Energy Services Provider shall invoice the Customer for the shortfall between the Energy Output actually consumed and the Minimum Energy Output.

6.2 **Disputed payments**

If any sum or part of any sum stated in an Invoice is disputed by the Customer, then:

6.2.1 The Customer shall within 14 Days of receipt of such disputed Invoice, issue to the Energy Services Provider a notice (**"Invoice Dispute Notice"**) specifying exactly what it is disputing within the Invoice, including data and/or records upon which the dispute is premised;

6.2.2 The Parties shall use their reasonable endeavours to resolve the payment dispute by amicable negotiation, and if the Parties are unable to resolve the dispute within 10 Business Days of the Payment Date, then either Party may refer such dispute for determination in accordance with this Agreement; and

6.2.3 In respect of the disputed amount, the Customer shall pay such amount as is agreed or determined payable in respect of the disputed sum on the Payment Date for the original Invoice, or, if later, within 30 Days of the end of the month within which the revised Invoice is received by the Customer following: (i) the date on which the Parties resolve the disputed sum; or (ii) the date of determination following arbitration proceedings.

6.3 **Payment Security**

6.3.1 As security for its payment obligations under this Agreement, the Customer shall make payment of and maintain an amount equal to the value of three months' anticipated Payments in a ring-fenced bank account (Escrow Account) that can be accessed by the Energy Services Provider upon a failure by Customer to make payment within the specified payment period or prescribed remedy period in terms of this Agreement.

6.3.2 Where the Energy Services Provider has exercised its rights under Clause 6.3.1, the Customer shall within 30 Business Days of the date of payment of any amounts from the Escrow Account replenish the Escrow Account to the amount stipulated in Clause 6.3.1 above.

7. OBLIGATIONS OF THE PARTIES

7.1 **Primary Obligations of the Energy Services Provider**

7.1.1 Subject to clause 3.1 above, and for the duration of the Term, the Energy Services Provider shall:

(a) design, finance, construct, test, commission, operate and maintain the Solar PV Facility in accordance with:

(i) Good Industry Practice;

(ii) the applicable Law;

(iii) the Energy Services Provider's Authorisations; and

(iv) in such a manner as to achieve minimum design life of 21 operational years;

(b) deliver the Minimum Energy Output;

(c) prepare, negotiate and execute all project documents required for the construction and operation of the Solar PV Facility;

(d) procure and deliver to the Customer the Battery Equipment and any replacements thereof in accordance with this Agreement; and

(e) comply with the terms of the Customer Authorisations and not cause the Customer to be considered in breach, default or non-compliance of any Customer obligations under such Customer Authorisations.

7.2 **Primary obligations of the Customer**

7.2.1 Following the expiry of the Ramp-up Period, the Customer shall purchase the Minimum Energy Output for consideration, irrespective of whether the Customer is able to take delivery of the Minimum Energy Output. If the Energy Services Provider is for any reason, other than a Customer Risk Event, Site Owner System Event or Force Majeure Event, not able to generate and deliver the Minimum Energy Output, the Minimum Energy Output will be reduced accordingly and the Performance Liquidated Damages shall apply.

7.2.2 The Customer shall operate and maintain the Battery Equipment in accordance with Good Industry Practice.

7.2.3 The Customer shall obtain the Customer Authorisations.

7.2.4 The Customer shall maintain security of the Project at the Project Site.

7.3 **Authorisations**

7.3.1 The Customer shall, at its cost, obtain and maintain in force all Customer Authorisations.

7.3.2 The Energy Services Provider shall, at its cost, obtain and maintain in force all Energy Services Provider Authorisations including, for the duration of the Term, bearing the full responsibility for any order issued by any government authority pursuant to, and in accordance with, the applicable authorisations and environmental laws, and shall discharge all Environmental Obligations in relation to the Solar PV Facility and the Project Site that are within the control of the Energy Services Provider, acting in accordance with Good Industry Practice for the duration of this Agreement.

7.3.3 Each Party shall provide such reasonable assistance, documentation and other information as other Party may require in order to obtain and maintain such Authorisations.

7.4 **Environmental and Social Standards**

7.4.1 The Parties shall comply with both national and international environmental and social standards.

7.5 **Project Site**

7.5.1 The Energy Services Provider shall:

(a) be responsible for acquiring rights to use the Project Site(s) from the respective Site Owner(s); and

(b) undertake all surveys, site preparations, fencing, grubbing, preparation of construction facilities, laydown areas and any other facilities as necessary to undertake the Project.

7.6 **Relocation**

7.6.1 At the Customer's request or in the event the Site Owner terminates the rights to use the available energy at the Project Site, the Solar PV Facility may be permanently moved to an alternate location, provided the Customer agrees:

(a) to pay the Energy Services Provider for the expense and costs incurred to remove and re-install the Solar PV Facility;

(b) that, in the event the new location is less favourable for the generation of Energy Output than the original location, the Tariff shall be adjusted by amounts proposed by Energy Services Provider in order to place the Energy Services Provider in the same position as if the Solar Facility had not been moved;

(c) to pay the Energy Services Provider an amount equal to the lost revenue for the period of time during which the Solar PV Facility was not in operation as a result of the removal. To calculate the energy that would have been generated by the Solar PV Facility during the Relocation Period, the Energy Services Provider shall refer to the energy that was generated or was available to be generated by the Solar PV Facility during a similar period in the preceding year; and

(d) to compensate the Energy Services Provider for any direct consequences resulting from the loss of any Equipment warranties.

7.6.2 The Customer shall provide written notice at least sixty (60) days prior to the date that it wants to relocate the Solar PV Facility.

8. FACILITY DEVELOPMENT

8.1 Enabling Works

The following terms and conditions shall govern the provision of all pre-construction works by the Customer on which the Energy Services Provider shall rely on to deliver its obligations under this agreement:

8.1.1 The pre-construction works described in ANNEXURE D: CUSTOMER ENABLING WORKS (the "Enabling Works") shall be required to be completed before the Energy Services Provider can commence installation of the Facilities.

8.1.2 The Customer shall be responsible for the Enabling Works described in ANNEXURE D and they shall be completed to a standard as to allow the Energy Services Provider to commence installation of the Facilities.

8.1.3 The Customer remains responsible for the design, maintenance and upkeep of the Enabling Works of a structural nature (including insurance thereof). In the event that the Enabling Works critical to the proper operation of the Facilities (or the fulfilment of Energy Services Provider's obligations under the Agreement) are in a state that requires immediate repair, the Energy Services Provider shall request that Customer make such repairs or corrections so as the Enabling Works are completed to the extent required for the Facilities to function as intended. Where the Customer fails to make such repairs or amendments to the Enabling Works, after being provided the request from the Energy Services Provider, Energy Services Provider may make such repairs or perform such improvements at its own expense, save that all such costs and expenses reasonably incurred in correcting, fixing or maintaining the Enabling Works shall be recoverable from the Customer.

8.2 Construction

8.2.1 The Energy Services Provider shall engineer, procure, construct, commission and test the Solar PV Facility generally in accordance with the design and equipment parameters set forth in Schedule 2 (Functional Specification of Project and Interconnection Facilities).

8.2.2 The Energy Services Provider shall have absolute discretion to adjust the specifications of the Solar PV Facility and Interconnection Facilities provided that such adjustments do not have a material impact on the system's ability to charge the Battery Equipment.

8.3 Commercial Operation Date

8.3.1 The Energy Services Provider shall apply its best endeavours to achieve the Commercial Operation Date by the Scheduled COD.

8.4 Testing and Commissioning

8.4.1 The Energy Services Provider shall be responsible for the implementation of test procedures during the construction and commissioning of the Solar PV Facility in accordance with Schedule 4 (Testing Regime) and shall notify the Customer in advance of all testing as provided in Schedule 4 (Testing Regime).

8.5 **Interconnection Facilities**

8.5.1 The Energy Services Provider shall at its own cost and expense design and construct the required Interconnection Facilities in accordance with Schedule 2 (Functional Specification of Project and Interconnection Facilities), applicable Law and Good Industry Practice.

8.6 **Delays in achieving Commercial Operation Date**

8.6.1 If a Customer Risk Event causes any delay to the achievement by the Energy Services Provider of the Commercial Operation Date by the Scheduled COD then:

(a) the Scheduled COD shall be extended by that number of Days that the applicable event actually delayed the achievement of the Commercial Operation Date, provided that the Energy Services Provider shall take reasonable steps to mitigate the effect of such delay and shall notify the Customer of such Customer Risk Event within 5 Business Days after the Energy Services Provider became aware or should have become aware of the event or circumstance; and

(b) the Energy Services Provider shall be entitled to an amount equivalent to:

(i) 50% of the Minimum Energy Output (prorated) for each day of delay from the Scheduled COD up until the Commercial Operation Date is achieved, less any amount invoiced by the Energy Services Provider pursuant to Clause 3.2.1; and

(ii) any direct costs incurred by the Energy Services Provider as a result of such delay,

provided that the Facility would otherwise have been available and able to deliver Energy Output to the Customer, but for the Customer Risk, as applicable.

8.7 **Longstop Date**

8.7.1 If the Commercial Operation Date is not achieved by the Longstop Date (or as may be extended by mutual agreement of the Parties) then either Party shall be entitled to terminate this Agreement as if terminated pursuant to Clause 13 (*Force Majeure*).

9. FACILITY OPERATION AND MAINTENANCE

Unless otherwise provided in this Agreement, at all times from the Commercial Operation Date until the end of the Term, the Energy Services Provider undertakes to operate and maintain the Solar PV Facility, at its sole cost and risk in accordance with the terms of this Agreement.

9.1 **Operation of the Facility**

9.1.1 The Energy Services Provider undertakes to:

(a) deliver the Minimum Energy Output and Additional Energy Output (if applicable) to the Delivery Point;

(b) use Energy generated by the Facility in the operation and maintenance of the Solar PV Facility provided that the Energy Services Provider is at all times able to deliver the Minimum Energy Output;

(c) at all times co-operate in good faith with the Customer;

(d) employ, directly or indirectly, operation and maintenance personnel who are duly qualified, licenced professionals who are appropriately experienced to be carrying out such operation and maintenance of the Solar PV Facility; and

(e) ensure that the Solar PV Facility is monitored remotely or otherwise.

9.1.2 The Energy Services Provider shall develop Operating and Maintenance Procedures for the Facility which shall provide operating, maintenance and communication procedures for all operational interfaces between the Solar PV Facility and the Interconnection Facilities.

9.1.3 Nothing contained in this Agreement shall be construed as requiring the Energy Services Provider to operate the Solar PV Facility, at any time, including during an emergency, in any manner inconsistent with the applicable Laws and Good Industry Practice.

9.2 **Planned Maintenance**

9.2.1 The Energy Services Provider shall undertake scheduled maintenance, upon prior written notice to the Customer, including overhauls, capital improvements and replacements of major components, of the Solar PV Facility in accordance with the maintenance schedules ("**Facility Maintenance Schedule"**) developed pursuant to this Clause 9.3.

9.2.2 The Energy Services Provider shall be entitled to order a rescheduling of a Scheduled Outage if such rescheduling is a consequence of a Force Majeure Event or a Customer Risk Event.

9.2.3 The Energy Services Provider undertakes that it shall use all reasonable endeavours to minimise the downtime due to any maintenance contemplated in terms of Clause 9.3.1 above.

9.3 **Unscheduled Outages**

9.3.1 If an Unscheduled Outage occurs, the Energy Services Provider shall:

(a) inform the Customer of the Unscheduled Outage as soon as reasonably practicable after the earlier of:

(i) the Energy Services Provider becoming aware of the need for such Unscheduled Outage; and

(ii) the occurrence of such Unscheduled Outage; and

(b) notify the Customer of the expected extent and duration of the Unscheduled Outage.

9.3.2 The Energy Services Provider undertakes to use reasonable endeavours to limit the number of Unscheduled Outages.

9.3.3 The Energy Services Provider shall be responsible for any costs incurred by it in respect of or in connection with or arising from any maintenance carried out by it during such Unscheduled Outage.

9.4 **Metering**

9.4.1 The Energy Services Provider shall, at its expense, procure, supply, install, own, operate and maintain the Power Quality Meter at the location set out in Schedule 3 (Meter Specification) and the Main Meters at the Delivery Points.

(a) The Energy Output delivered to the Customer pursuant to this Agreement shall be measured by the Metering Systems at the Delivery Point.

(b) The Energy Services Provider shall at its cost and expense install, test and calibrate the Main Meter at the Delivery Points, in accordance with Schedule 3 (Meter Specifications).

(c) The Metering Systems shall have the functional capability to determine the Energy Output and Reactive Energy Output quantities as set out in Schedule 3 (Meter Specifications).

9.4.2 Readings

(a) Data readings from the Metering Systems shall be done at [to be provided] on the first Day of each Billing Period or as otherwise set forth in an agreed schedule of Monthly meter readings (such agreement not to be unreasonably withheld or delayed) for the purposes of determining the Energy Output; provided, however, that metering values shall be recorded, at the end of each metering interval of 30 minutes, starting each Day at midnight (unless otherwise agreed by the Parties).

10. CUSTOMER EVENTS OF DEFAULT

10.1 Each of the following shall (to the extent not solely caused by an Energy Services Provider Event of Default or a Force Majeure Event) be a Customer Event of Default which, if not cured within the time permitted, shall give rise to a Customer Event of Default:

10.1.1 subject to where the Customer has successfully exercised the options set out in clause 2.4, failure by the Customer to renew this Agreement after any 7 years period within the Term;

10.1.2 the failure by the Customer to make any payment under this Agreement after it has become due and payable in each case within 45 Days after receipt from the Energy Services Provider of a written notice calling upon it to do so;

10.1.3 the Customer fails to maintain the required balance of the Escrow Account or replenish the balance of the Escrow Account within 15 Business Days after receipt of notice demanding the Customer to remedy the breach;

10.1.4 an Insolvency Event occurs in respect of the Customer;

10.1.5 the Customer breaches any anti-corruption law or its undertakings in respect of sanctions and or anti-bribery;

10.1.6 a breach by the Customer of any material obligations which is not remedied within 45 Business Days after notice from the Energy Services Provider to the Customer stating that such a breach has occurred, identifying the breach in question in reasonable detail, and demanding remedy thereof; and/or

10.1.7 EPRA lawfully withdraws, revokes or cancels the Generator Licence due to the Customer's wrongful or negligent act or omission.

10.2 Consequences of a Customer Event of Default

10.2.1 In the event a Customer Event of Default which, if not cured within the time permitted occurs,:

(a) the Energy Services Provider shall enforce performance of this Agreement and to recover damages due to Customer’s breach;

(b) the Customer shall pay to the Energy Services Provider an amount equal to a quantifiable and justifiable financial representation of losses, costs, or expenses incurred by the Energy Services Provider, which are a direct consequence of the premature or lawful termination of the agreement by the other party;

(c) at the Energy Services Provider option (in its absolute discretion), call on the Customer to transfer the Solar PV Facility and/or the Battery Equipment to itself or another nominee of the Customer upon payment to the Energy Services Provider of an amount equal to the value of the assets and a quantifiable and justifiable financial representation of losses, costs, or expenses incurred by the Energy Services Provider.

11. ENERGY SERVICES PROVIDER EVENTS OF DEFAULT

11.1 Except where it occurs as a sole consequence of a Customer Risk Event, Customer Event of Default or a Force Majeure Event, each of the following events shall be an Energy Services Provider Event of Default, which, if not cured within the time permitted, shall give rise to the right on the part of the Customer to terminate this Agreement:

11.1.1 EPRA lawfully withdraws, revokes or cancels the Generator Licence due to the Energy Services Provider's wrongful or negligent act or omission;

11.1.2 an Insolvency Event occurs in respect of the Energy Services Provider;

11.1.3 the Energy Services Provider or its Affiliates breach any anti-corruption or anti-bribery laws in relation to the Project;

11.1.4 a breach by the Energy Services Provider of any material obligations which is not remedied within the period agreed by the Customer in the remediation plan proposed by the Energy Services Provider to the Customer in which all instances shall be longer than a period of 45 Business Days following notice from the Customer to the Energy Services Provider stating that such a breach has occurred, identifying the breach in question in reasonable detail, and demanding remedy thereof.

11.2 Consequences of Termination in respect of an Energy Services Provider Event of Default

11.2.1 the Energy Services Provider shall pay to the Customer an amount equal to a quantifiable and justifiable financial representation of losses, costs, or expenses incurred by the Customer, which are a direct consequence of the premature or lawful termination of the agreement by the other Party; and

or

11.2.2 the Customer shall, at its sole discretion, purchase the Solar PV Facility and/or the Battery Equipment from the Energy Services Provider of an amount equal to the value of the assets as assessed by an independent appraisal agreed upon by both parties.

12. **FORCE MAJEURE**

12.1 Consequences of Force Majeure

12.1.1 If either Party is rendered wholly or in part unable to perform its obligations hereunder because of a Force Majeure Event, the affected Party shall be excused from the performance affected by the Force Majeure Event, provided that:

(i) the Party affected by the Force Majeure shall give the other Party prompt written notice, without intentional delay, describing the particulars of the event, a general description of the obligations likely to be affected, an estimate of the likely duration of the Force Majeure Event and a statement of the actions to be taken in order to comply with the affected Party's obligations;

(ii) the suspension of performance shall be of no greater scope and of no longer duration than is required to remedy the effect of the Force Majeure; and

(iii) no payment obligations of either Party shall be excused by the Force Majeure Event.

12.1.2 The affected Party shall make all reasonable efforts to prevent and reduce to a minimum and mitigate the effect of any delay occasioned by any Force Majeure Event, including by taking out and maintaining insurance over the Force Majeure Events that are insurable and any recourse to alternate sources of services, equipment and materials.

12.1.3 In the event that the Energy Services Provider receives compensation, in the form of insurance proceeds or otherwise, for any loss for which it is entitled to relief in terms of this Clause, it shall promptly inform the Customer and the compensation already received by the Energy Services Provider shall be taken into account in determining and or adjusting the relief provided to the Energy Services Provider under this Clause.

12.1.4 If the Customer objectively demonstrates that the Energy Services Provider is not making reasonable effort to minimise and or mitigate the effects of any delay or loss occasioned by the Force Majeure Event as would be expected in accordance with Good Industry Practice, the Customer shall be entitled to instruct the Energy Services Provider on what steps to take in relation to the Force Majeure Event, and the costs associated with the actions taken by the Energy Services Provider will be for the account of the Energy Services Provider.

12.2 Force Majeure resulting in termination

12.2.1 If a Force Majeure Event occurs which prevents a Party from substantially performing its obligations under this Agreement for a period exceeding a cumulative period of 180 Days in any Contract Year ("**Extended FM Period"**), the Parties shall meet with a view to agree on mitigating the effects thereof and attempt in good faith to negotiate amendments to this Agreement as are reasonably necessary to preserve the economic value of this Agreement to both Parties. If at the end of thirty (30) days, no further solution is found between the Parties, the Energy Services Provider shall have the option but not an obligation to sell the Solar PV Facility and the Battery Equipment at a price mutually agreed upon between the Parties plus any amounts accrued but unpaid hereunder. If the Parties are unable to agree upon such amendments or sale within such thirty (30) day period, then Energy Services Provider shall have the right to deliver a notice to Customer terminating this Agreement.

13. CHANGE IN LAW

13.1 Notice for Change in Law

13.1.1 If a Change in Law occurs, either Party shall give the other prompt written notice, without intentional delay, describing the particulars of the Change in Law, a general description of the obligations likely to be affected and a statement of the actions to be taken in order to comply with that Party's obligations under this Agreement.

13.1.2 Each Party shall use all reasonable endeavours to minimise and mitigate the effects of any Change in Law.

13.2 Consequence of Change in Law

13.2.1 If, after the Signature Date, there is a Change in Law which will (or will reasonably be expected to) result in increased costs, lost revenue or savings, the Parties shall meet within30 Business Days of the Party providing written notice to the other of the Change in Law, the Parties shall meet to discuss the amendments required to this Agreement to preserve the economic value of this Agreement, provided that in the event that the Parties are unable to agree such amendments within 30 Business Days, either Party may refer the dispute to arbitration for determination (such amendments following Agreement or determination thereof, being the "**Revised Commercial Terms"**).

13.2.2 Within 30 Business Days following this Agreement of the Parties or determination following arbitration proceedings (as the case may be) of the Revised Commercial Terms, each Party shall provide written notification to the other Party as to whether the Party accepts or rejects the Revised Commercial Terms, provided that if a Party fails to provide notification to the other Party within such period, the Revised Commercial Terms shall be deemed to be accepted by such Party.

13.2.3 If either Party reasonably considers that it is not commercially feasible to implement or enforce the arbitrator's determination concerning the Revised Commercial Terms, then either Party may terminate this Agreement and, the Energy Services Provider shall have the option but not the obligation to sell the Solar PV Facility and the Battery Equipment at a price mutually agreed upon between the Parties plus any amounts accrued but unpaid hereunder. If the Parties are unable to agree upon such amendments or sale

within such thirty (30) day period, then Energy Services Provider shall have the right to deliver a notice to Customer terminating this Agreement.

14. GENERAL

14.1 Taxes, Fees and Levies

14.1.1 Each Party shall be responsible for payment of royalties, taxes, fees, or assessments levied against its property or other assets or profits by any Government Authority as may be provided for by any Law, and shall settle such levies without attempting to recover them from the other.

14.1.2 All Environmental Credits and Environmental Offsets (in relation to carbon tax), relating to the Project, shall be for the sole benefit of the Energy Services Provider.

14.2 Insurance

14.2.1 General

(a) Each party shall (and the Energy Services Provider shall procure that each Contractor shall) at its sole cost and expense, to the extent available at reasonable commercial cost and on reasonable commercial terms in the African insurance market ("**Acceptable Terms**"), obtain and maintain insurances set out in Schedule 7 (Insurance Requirement) in full force and effect in accordance with the requirements of:

(i) applicable Law;

(ii) this Clause 15.2 and Schedule 7 (Insurance Requirement);

(iii) Good Industry Practice; and

(iv) the financing agreements (if applicable).

(b) Each party warrants to the other that it shall at all relevant times observe all of the conditions of its insurance policies and all of the insurance provisions contained in this Agreement.

(c) Each party shall furnish to the other copies of insurance policies effecting the insurance required to be taken out and maintained by that Party and/or the Contractors and each Party may request the other Party from time to time to provide proof that all relevant premiums have been paid and that the relevant policy or policies remain in existence.

14.3 Liabilities

14.3.1 Limitation of Liability

Neither of the Parties shall be liable to the other Party for any indirect, consequential, incidental, punitive or exemplary damages or losses of the other Party save to the extent that this liability arises as a result of (i) any of the indemnity obligations pursuant to this Agreement, (ii) breach of any applicable anti-bribery and corruption Laws, (iii) the fraud,

wilful misconduct or gross negligence of such Party; and (iv) breach of any applicable Law.

14.3.2 Indemnities

(a) **Indemnity for death or personal injury and/or damage to property**

Each party shall indemnify, defend and hold harmless the other party and its respective shareholders, directors, officers, employees, representatives, agents, contractors and licensees (for purposes of this Clause 15.3.2(a) each an indemnified party) from and against all costs, losses, damages, claims, liabilities and/or expenses of any kind incurred or suffered by the indemnified party and its respective directors, officers, employees, representatives, agents, contractors and licensees in respect of damage to or loss of any property, real or personal or any death or injury to any such indemnified party who is a natural person caused by, or arising from or in any manner connected with a negligent act or omission of the indemnifying party, except to the extent that any such costs, losses, damages, claims, liabilities and/or expenses of any kind are caused by, or arise from or in connection with the fraud or wilful misconduct or breach of this Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof. In respect to damage to property pursuant to this Clause, the Energy Services Provider shall indemnify the Customer for any costs, loss or damages up to the greater of i) 100% of the contract value and ii) the maximum limit of indemnity under the indemnifying party's general or public liability insurance cover.

(b) **Indemnity for Third Party Liability**

Each party shall indemnify, defend and hold harmless the other party and its respective directors, officers, employees, representatives, agents, contractors and licensees (for purposes of this Clause 15.3.2(b), each an indemnified party) from and against all costs, losses, damages, claims, liabilities and/or expenses of any kind incurred or suffered by such indemnified parties in respect of any loss of or damage to property of any third party or death or injury to any third party who is a natural person to the extent caused by the indemnifying party and/or its respective directors, officers, employees, representatives, agents, contractors and licensees and arising out of a negligent act or omission of the indemnifying party, except to the extent such losses, damages, injury or death is attributable to fraud or wilful misconduct or breach of this Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof. For purposes of this Clause, the term third party shall mean any person not falling within the definition of indemnified party in this Clause 15.3.2 (and shall not include the Energy Services Provider, the Customer or any of their respective directors, officers, employees, representatives, agents, contractors or licensees).

(c) **Indemnity for liability under applicable Law**

Notwithstanding anything to the contrary in this Agreement, Each party shall indemnify, defend and hold harmless the other party and its respective directors, officers, employees, representatives, agents, contractors and licensees (for the purposes of this Clause 15.3.2(c), each an indemnified party) from and against all costs, expenses, liabilities and/or losses, claims, suits and/or proceedings of any

kind incurred or suffered by such indemnified party pursuant to applicable Law as a result of the negligent activities or omissions of the indemnifying party, including any penalties imposed pursuant to applicable Law and any clean-up and/or remedial costs resulting from or arising out of pollution or contamination howsoever occurring as a result of the activities of the indemnifying party except to the extent such costs, expenses, liabilities and/or losses, claims, suits and/or proceedings are caused by, or arise from or in connection with the fraud, wilful misconduct or breach of this Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof.

15. REPRESENTATIONS AND WARRANTIES

15.1 Energy Services Provider Representations and Warranties

The Energy Services Provider hereby represents and warrants to the Customer as at the Signature Date as follows:

15.1.1 it is a limited liability company, duly incorporated and validly existing under the Laws of the Republic of Kenya and has taken all necessary actions to authorise its execution of and to fulfil its obligations under this Agreement;

15.1.2 it has the technical and financial resources, skill, experience and capability to undertake the Project;

15.1.3 its obligations under this Agreement and its rights and obligations under this Agreement are legal, valid and binding and enforceable against it, in accordance with the terms of this Agreement;

15.1.4 the execution and performance of this Agreement do not and will not contravene any provision of its memorandum or articles of association or memorandum of incorporation, or any order or other decision of any responsible authority or arbitrator that is binding on it;

15.1.5 all Energy Services Provider Authorisations required for the conduct of the Project are in full force and effect, save for any Authorisations which are not required under the Laws of The Republic of Kenya to be obtained by the Signature Date, provided that the Energy Services Provider warrants that it knows of no reason (having made all reasonable enquiries in this regard) why any such Authorisation will not be granted on reasonable terms by the time it is required to obtain such Authorisation;

15.1.6 no litigation, arbitration, investigation or administrative proceeding is in progress or, to the best of the knowledge of the Energy Services Provider (having made all reasonable enquiries), threatened against it or any of the Contractors, which is likely to have a material adverse effect on the ability of the Energy Services Provider to conduct the Project;

15.1.7 it has not committed or suffered an Insolvency Event;

15.1.8 all information disclosed by or on behalf of the Energy Services Provider to the Customer and, in particular, during the project development phase as contemplated in the preceding this Agreement, is true, complete and accurate in all material respects;

15.1.9 all intellectual property used by the Energy Services Provider in respect of the Solar PV Facility is owned and/or licensed for use by the Energy Services Provider; and

15.1.10 no default or event of default has occurred and is continuing and no default or event of default shall occur as a result of the performance by Energy Services Provider of its obligations under this Agreement.

15.2 **Customer Representations and Warranties**

The Customer represents and warrants to the Energy Services Provider as at the Signature Date as follows:

15.2.1 it is a limited liability company, duly incorporated and validly existing under the Laws of The Republic of Kenya and has taken all necessary actions to authorise its execution of and to fulfil its obligations under this Agreement;

15.2.2 its obligations under this Agreement and its rights and obligations under this Agreement are legal, valid and binding and enforceable against it, in accordance with the terms of this Agreement;

15.2.3 the execution and performance of this Agreement does not and will not contravene any provision of its memorandum or articles of association or memorandum of incorporation, or any order or other decision of any responsible authority or arbitrator that is binding on it;

15.2.4 all Customer Authorisations required for the conduct of the Project are in full force and effect, save for any Authorisations which are not required under the Laws of The Republic of Kenya to be obtained by the Signature Date, provided that it warrants that it knows of no reason (having made all reasonable enquiries in this regard) why any such Authorisation will not be granted on reasonable terms by the time it is required to obtain such Authorisation;

15.2.5 no litigation, arbitration, investigation or administrative proceeding is in progress or, to the best of its knowledge (having made all reasonable enquiries), threatened against it or its holding company, which is likely to have a material adverse effect on the ability of the it, or the Customer, to conduct the Project;

15.2.6 it has not committed or suffered an Insolvency Event;

15.2.7 all information disclosed by or on behalf of it to the Energy Services Provider, is, to the best of its knowledge, true, complete and accurate in all material respects; and

15.2.8 no default or event of default has occurred and is continuing and no default or event of default shall occur as a result of the performance by it, or by the Customer, of its obligations under this Agreement.

16. **DISPUTE RESOLUTION**

16.1 **Negotiations**

16.1.1 In the event of any dispute, controversy or claim between the Parties, arising out of or in connection with this Agreement, including any question regarding its existence, termination, validity or any breach thereof (Dispute), either Party may notify the other Party of the Dispute by way of a written notice, which shall identify the Dispute and

contain sufficient information to enable the other Party to understand the nature of the Dispute.

16.1.2 Except as otherwise provided in this Agreement, within 10 Business Days of the date of provision of such notice of Dispute, the Parties shall attempt to resolve such Dispute in good faith through negotiation between the representatives of each Party, and these representatives shall have the necessary authority to make binding decisions. If such individuals are unable to reach an agreement within such Business Days, or over a longer period, if the Parties have so agreed, either Party may refer the Dispute to arbitration in accordance with Clause 17.2.

16.2 **Arbitration**

16.2.1 Any Dispute arising out of or in connection with this Agreement that has not been resolved following the procedures set forth in Clauses 17.1 shall (regardless of the nature of the Dispute) be referred to arbitration.

16.2.2 The Parties agree that any arbitration shall be conducted as follows:

(a) the arbitration procedure is administered and regulated by the London Court of International Arbitration ("**LCIA**") and the LCIA rules in force at the time of the dispute ("**Rules**") which rules are deemed to be incorporated by reference into this clause;

(b) the language of the arbitration shall be English;

(c) the seat of the arbitration shall be London, England;

(d) any hearing will be held in Nairobi, Kenya;

(e) unless otherwise agreed, the number of arbitrators shall be one (1);

(f) for one arbitrator, the parties shall each propose an arbitrator within thirty (30) days of the notice of arbitration, and if the parties cannot agree, the sole arbitrator will be appointed by the LCIA within a reasonable time;

(g) any award shall be confidential, final and binding upon the parties and (to the fullest extent permitted by applicable laws) the parties waive their right to any form of appeal or other similar recourse to a court of law; and

(h) the arbitral tribunal shall have authority to determine any matters in dispute and shall make a ruling on costs. notwithstanding any provision in this clause, the arbitrator(s) shall not have authority to terminate the agreement.

16.2.3 Nothing in this agreement shall prevent either party from seeking urgent or injunctive relieve from a court of competent and applicable jurisdiction.

17. CONFIDENTIALITY

17.1 The Parties will not disclose to any third party (excluding as permitted pursuant to this Clause 18):

17.1.1 the details of this Agreement and the information handed over to the other Party during the course of negotiations, as well as the details of the transactions contemplated in this Agreement; and

17.1.2 all information relating to the business or the operations and affairs of the Parties,

(together **Confidential Information**), without the prior written consent of the other Party.

17.2 **Provided that each Party may disclose such Confidential Information:**

17.2.1 to its employees, officers, representatives, advisers, agents or subcontractors who:

(a) need to know such Confidential Information for the purposes of carrying out such Party's obligations under this Agreement;

(b) are aware that the Confidential Information should be kept confidential;

(c) are aware of the disclosing Party's undertaking in relation to such information in terms of this Agreement; and

(d) have been directed by the disclosing Party to keep the Confidential Information confidential and have undertaken to keep the Confidential Information confidential; and

17.2.2 to Lenders or prospective lenders of the Project.

17.3 Each Party shall ensure that its employees, officers, representatives, advisers, agents or subcontractors to whom it discloses such information comply with this Clause 18.

17.4 The obligations of non-disclosure under this Agreement do not extend to information that:

17.4.1 is disclosed to a receiving Party in terms of this Agreement but at the time of such disclosure, such information is in the lawful possession or control of that Party and not subject to an obligation of confidentiality;

17.4.2 is or becomes public knowledge, otherwise than pursuant to a breach of this Agreement by the Party who disclosed such Confidential Information; and

17.4.3 is required by the provisions of any law, or regulation, or during any proceedings, the Party required to make the disclosure has taken all reasonable steps to oppose or prevent the disclosure and has consulted with the other Party prior to making such disclosure.

18. MISCELLANEOUS PROVISIONS

18.1 Notices

18.1.1 The Parties choose the following addresses for the services of any written notice or legal proceedings in connection with this Agreement:

(a) the Energy Services Provider:

address: 11th Floor, Skypark Plaza

Woodvale Close, Nairobi, Kenya

email: tombo.banda@crossboundary.com; legal@crossboundary.com and marked for the attention of: Tombo Banda

(b) the Customer:

address: Kiagombe, Warehouse 2

Old Mombasa Rd, Nairobi, Kenya

email: mose.hezbon@Ampersand.solar; info@Ampersand.solar and marked for the attention of: Hezbon Mose

18.1.2 The notice shall be deemed to have been duly given:

(a) on delivery, if delivered to the Party's physical address in terms of either Clause 20.1.1 before 17h00 on a Business Day, or if delivered on a Business Day but after 17h00 on that Business Day or on any Day other than a Business Day, it will be deemed to have been given at 08h30 on the first Business Day after it was delivered;

(b) if sent to the Party's then e-mail address, only if the recipient Party has replied to the email sent by the sender Party or the sender has received an acknowledgment of receipt of the same, in which case, deemed service of the email shall be on the date of receipt of the email in reply or of the acknowledgment of receipt, as the case may be,

unless the addressor is aware at the time the notice would otherwise be deemed to have been given, that the notice is unlikely to have been received by the addressee through no act or omission of the addressee.

18.1.3 A Party may change that Party's address or e-mail address for this purpose by notice in writing to the other Party, such change to be effective only on and with effect from the 5th Business Day after the giving of such notice.

18.1.4 Notwithstanding anything to the contrary herein contained, a written notice or communication actually received by a Party shall be an adequate written notice or communication to that Party notwithstanding that it was not sent to or delivered at that Party's chosen address in Clause 20.1.1.

18.2 **Entire Contract**

This Agreement contains all the provisions agreed on by the Parties with regard to the subject matter of this Agreement and the Parties waive the right to rely on any alleged provision not expressly contained in this Agreement.

18.3 **No Stipulation for the Benefit of a Third Person**

Save as is expressly provided for in this Agreement, no provision of this Agreement constitutes a stipulation for the benefit of a third person which, if accepted by the person, would bind any Party in favour of that person**.**

18.4 **No Representations**

A Party may not rely on any representation which allegedly induced that Party to enter into this Agreement, unless the representation is recorded in this Agreement.

18.5 **Variation, Cancellation and Waiver**

No contract varying, adding to, deleting from or cancelling this Agreement, and no waiver of any right under this Agreement, shall be effective unless reduced to writing and signed by or on behalf of the Parties.

18.6 **Indulgences**

The grant of any indulgence, extension of time or relaxation of any provision by a Party under this Agreement shall not constitute a waiver of any right by the grantor or prevent or adversely affect the exercise by the grantor of any existing or future right of the grantor.

18.7 **Assignment and Delegation**

18.7.1 The Customer may not assign any or all of its rights or delegate any or all of its obligations under this Agreement without the prior written consent of the Energy Services Provider.

18.7.2 Energy Services Provider may assign any or all of its rights or delegate any or all of its obligations under this Agreement without the prior written consent of the Customer.

18.8 **Governing Law**

This Agreement shall be governed, interpreted and implemented in accordance with the laws of England and Wales.

18.9 **Costs**

18.9.1 Each Party shall bear that Party's own legal costs and disbursements of and incidental to the negotiation, preparation, settling, signing and implementation of this Agreement.

18.10 **Signature in Counterparts**

This Agreement may be executed electronically and in counterparts, each of which shall be deemed to be an original and which together shall constitute one and the same Agreement.

SIGNATURE PAGE

MJT

For and on behalf of:

Name: Matthew Tilleard

Office: Nairobi

(who warrants his authority)

Hezbon Mose

For and on behalf of:

Name: Hezbon Mose

Office: Nairobi, Kenya

(who warrants his authority)

Schedule 1

PROJECT SITE

The project site will be located in Kitengela, Nairobi, coordinates (-1.483163, 36.955609)

Figure 1: Project site highlighted on Google Maps

Schedule 2

PRELIMINARY DRAWINGS, FUNCTIONAL SPECIFICATION OF PROJECT AND INTERCONNECTION FACILITIES

Reference to the following is made:

(A) Site Address: -1.483163, 36.955609
(B) Legal Description of Property: EV charging and battery swapping station
(C) Access Points (access rights)
(D) License Area marked out
(E) Metering Point(s): **A**
(F) Delivery Point: **B**
(G) Customer provided Storage Area: To be confirmed by the Customer.

Agreed design details:

Expected solar capacity (kWp)	36.8kWp
Minimum solar capacity (kWp)	20kWp
Interconnection voltage (V)	400Vac
Mounting location	Ampersand Kitengela
Configuration	Grid connected PV system

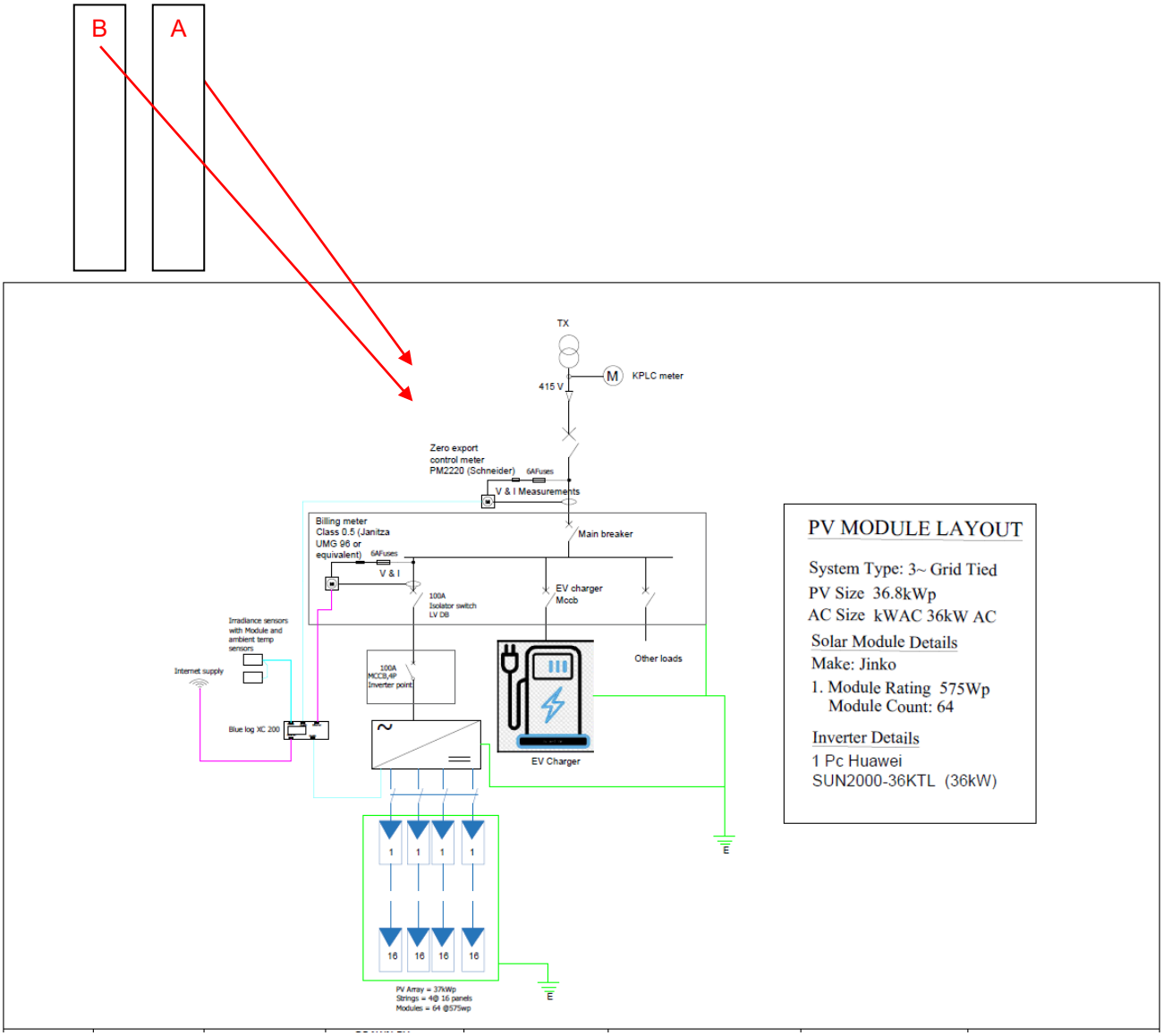

Figure 2: Preliminary SLD

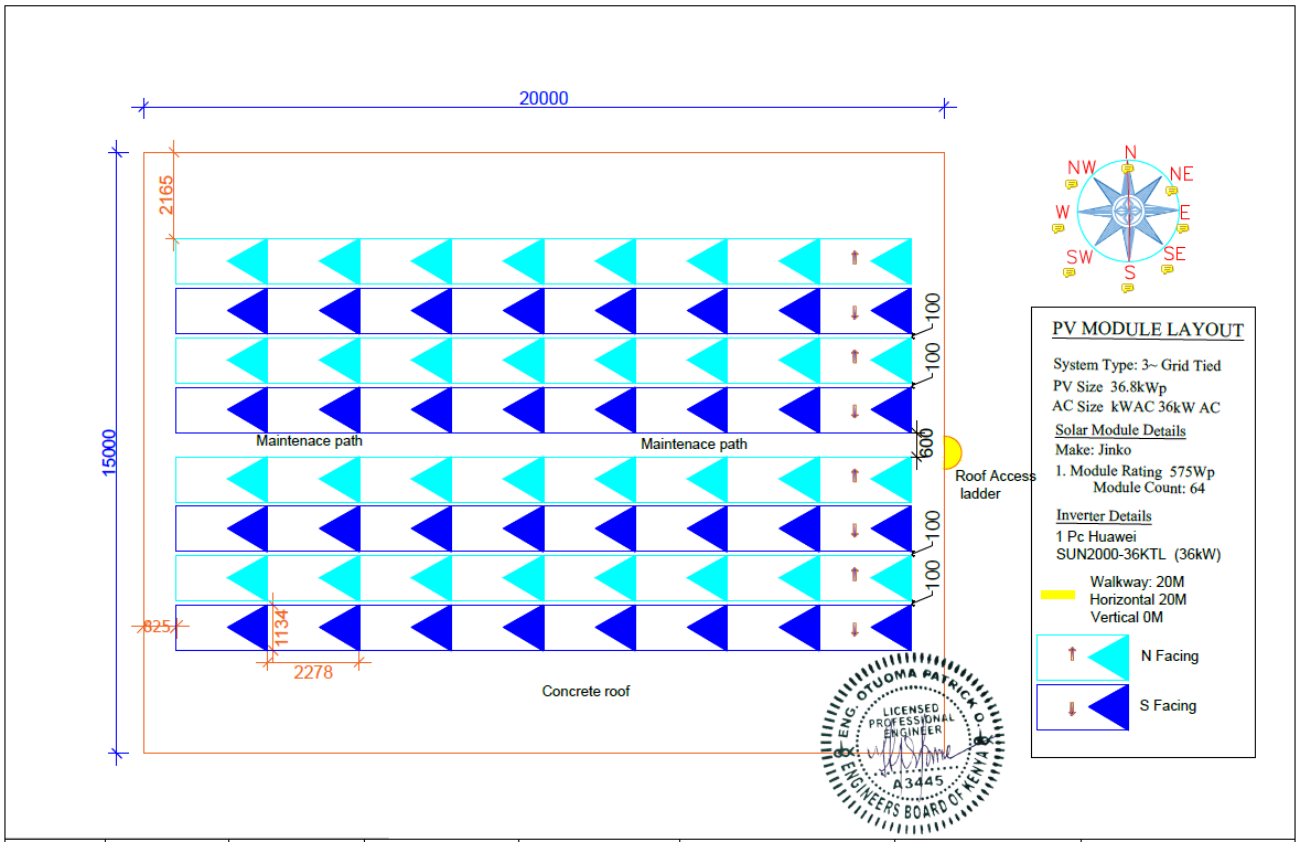

Figure 3: Preliminary PV layout

Schedule 3
METER SPECIFICATIONS

All metering shall conform to the following standards but not limited to:

1. IEC 62053 - Electricity metering equipment (A.C.)- requirements

2. IEC 60051-1 - Direct acting indicating analogue electrical measuring instruments and their accessories, definitions and general requirements common to all parts

3. IEC 61036 - Alternating current static watt-hour meters for active energy

Schedule 4
INSURANCE REQUIREMENT

The Energy Services Provider shall at its sole cost and expense, to the extent available at reasonable commercial cost and on reasonable commercial terms in the African insurance market, obtain and maintain insurances set out below:

Insurance category	Limit of liability
Construction Works / All Risks (including Marine Transit / Cargo)	Construction works insurance for the Facilities with a sufficient limit to cover full replacement value of the Facilities
Operating All Risks	Assets all risk insurance over the Facilities, which shall include in its scope, cover against natural disasters, loss or damage caused by accidental damage, fire, explosion, burglary, theft, flood, lightning, hail and wind.
Public / General Liability	US$ 50,000 per occurrence
[Other relevant insurances]	To be provided

Schedule 5
AUTHORISATIONS

1. **AUTHORISATIONS TO BE OBTAINED BY THE CUSTOMER**

1.1 Environmental Impact Assessment

1.2 Land lease

2. **AUTHORISATIONS TO BE OBTAINED BY THE ENERGY SERVICES PROVIDER**

2.1 Generation license/Construction permit

2.2 Physical planning permit

2.3 NCA registration

Schedule 6

REPLACEMENT VALUE FOR BATTERY EQUIPMENT

	Unit price (USD$)
Ampersand LFP battery	1,250.00
Total cost for Charging Station (includes associated racks, carts, structures)	737.00

Prices as of 17/7/2024. Batteries and charging stations to be replaced at prevailing cost

Schedule 7 : CUSTOMER ENABLING WORKS

Pre-Construction Works – Standard Enabling Works

#	Description –
1.	**Site Access** - Ensure access for trucks with 20" containers to the laydown area and to the site.
2.	**Offloading onsite** – where possible and practical, Customer to assist with providing machinery and assistance for the unloading of containers onsite. The purpose of this is to avoid the requirement of bringing external machinery onsite for the purpose of offloading.
3.	**Laydown Area and Storage Room** – allocation of a flat area with dimensions of at least 10m x 15m (laydown area) as well as a lockable storage room.
4.	**Security provisions** - 24/7 security services according to industrial standards to assist in the prevention of theft during construction.
5.	**Utility Services** – provision of onsite utility services at a localized point at ground level as follows: • Electricity: supply of power (single phase) where possible for construction purposes to power handheld power tools, mobile welders, laptops and any other appliances for construction purposes. • Internet: For remote service and event analysis reasons it is mandatory to have a secure and stable internet connection between the Energy Services Provider and the Control and Monitoring system according to the system requirements. In order to have this connection as simple and safe as possible the VPN IPsec technology is used. This allows an encrypted communication realized via a VPN tunnel to guarantee a high secured data transfer. The tunnel ensures the transfer of necessary firmware updates, download event log files and providing of online support. As a requirement, it is to be connected permanently to the internet. In case there is a Customer firewall in place, the following settings have to be released to ensure the access to the Fuel Saver Plant: - Energy Services Provider IP Address: TBC - Destination Ports: 500 and 4500 - Used Protocol: UDP - Minimum Bandwidth: 1MBit - Volume: 2GB/month, a flat rate is recommended - VPN: Passed through 4 IPSEC Additionally, it is necessary to forward one public port to port 443 (protocol: TCP) to the IP-Address of the Solar Hybrid Controller in the Customer's network. This port-forward is used to troubleshoot the VPN connection using an encrypted http connection in case of an interruption of the VPN tunnel. • Water: provision of water for cleaning PV modules. The water requirement for module cleaning during operation is ~30 m3/MWp/yr.
6.	**Staff Welfare Facilities:** Where possible and practical, Customer to grant Energy Services Provider access to sanitary facilities during scheduled work hours
7.	**Temporary Office Space**: Customer to provide lockable temporary office space to the Energy Services Provider for the period of construction.
8.	**Structural Reinforcement Works**: Customer shall be responsible for maintaining the structural integrity of the Customer's roof(s) and building(s) and their ability to accept the additional structural loading implied by the installation of the solar Facility. If works must be carried out to bring the structural integrity of the roof(s) and buildings(s) to standard, any such costs shall be incurred by the Customer. Any costs incurred by the Energy Services Provider on behalf of the Customer shall be recovered from the Customer in three (3) equal instalments included in the first three (3) invoices sent to the Customer for Energy Output delivered.
9.	**Delivery Point (Interconnection Point)**: Customer to provide suitable Delivery Point(s) 400V MCCB switchgear for the

#	Description –
	PV system. The Customer is responsible for undertaking any and all modifications that may be required to the Customer's existing power distribution system to form the Delivery Point(s), if a suitable Delivery Point does not already exist.
10.	**Cable Trenches**: Customer shall provide the Energy Services Provider with access to any existing cable trenches that are located on site along the System's owner's designed cable routes. The Customer shall permit the Energy Services Provider to use these cable trenches for laying of the solar facility's cables.
11.	**Building permit**: It is the duty of the owner of the building to obtain the building permit for the installation and operation of a solar PV system.
12.	**Environmental Authorisation**: The customer is responsible for obtaining any permits, licenses or authorizations required from the National Environment Management Authority (NEMA) to construct and operate the Facility.
13.	**Interconnection Downtime:** The Customer to make provision for downtime, Energy Services provider to notify Customer 2 weeks before connection is required. The Customer will arrange for their own staff to shut down the board and hand it over to the Energy Services Provider who will then make the modifications/connection. The Customer will then re-energise the board once it is handed back by the Energy Services Provider. Estimated downtime is 2-4 hours per day for 2 days.
14.	**Design acceptance**: Once the system is designed, post signature, the Customer is responsible to review and accept the Engineering and the Execution methodology prior to any purchase of equipment or installation. The Customer shall have 7 days from receipt of design documentation to review. If after 7 days no comments have been received the design will be considered accepted.
15.	**Sharing of Health and Safety Standards:** The Customer shall ensure that the Energy Services Provider is aware of the site-specific health and safety requirements and procedures.
16.	**Sequence of Operation**: Provide status of the existing control strategy and breaker status under the existing plant modes of operation.
17.	**New Works**: Customer is to ensure that no new works are carried out that present new obstacles or features that may interfere with the Facility at the areas allocated for the Facility, as indicated in Annexure B.
18.	**Existing underground services:** Provide information and documents about any existing underground services (pipes, cables) around any cable trenches to be executed by the Contractor.
19.	**Existing Earthing and Lightning Protection system**: Customer is responsible for ensuring that the existing earthing and lightning protection system is adequate and in sufficient working order to protect the existing infrastructure without considering the installation of the Facility.
20.	**Earthing and Lightning Study Approval**: Customer to review and accept the earthing and lightning protection system considering any dependencies from the Facility on the existing earthing and lightning protection systems.
21.	**Reactive Power Compensation:** The Facility will supply power at unity power factor and will not (under normal operation) provide any reactive power compensation. Any reactive power compensation required will need to be accounted for by the Customer, including any upgrades required on the existing power factor correction systems to allow for the integration of the Facility.
22.	**Grid connection:** Customer to ensure that the facility has a functioning grid connection. Energy Services Provider's solar PV facility will be a grid connected PV facility and will require a reference voltage and frequency source within grid code parameters in order to operate. The solar PV facility will not be capable of off-grid operation.

Permits and Licenses

1.	**Environmental Authorisation (if applicable):** Customer is responsible for obtaining any permits, licenses or authorizations required from NEMA to construct and operate the Facility (applicable for any Environmental Authorisations that must be in the name of the building owner).
2.	**Building permit:** It is the duty of the Customer as the owner of the building to obtain the building permit for installation and operation of a solar PV system (applicable for any building permits that must be in the name of the building owner).
3.	**Compliant fire safety permit (if applicable):** Where applicable Customer will revise its Fire Safety Permit to ensure compliance.

Works following Commercial Operation Date

#	Description
1.	**Switchboard Operations:** Operations and maintenance of all electrical infrastructure on the Customer's side of the Interconnection Point including Generator Equipment, transformers, switchgear, AVR's, UPS and power factor correction equipment.
2.	**Building Repairs**: Repair and maintenance of the existing building and roofing material as required.

SCHEDULE 8 : BATTERY SPECIFICATIONS AND OPERATIONS MANUAL

**Specification and warranty below to be replaced by detailed warranty document by the time of commissioning*

AMPERSAND Battery Specifications

Status: Preliminary

Battery Specifications	
Working Voltage	*72-84V*
Capacity (90% DoD)	40-45Ah
Maximum Discharge Rate	80A
Nominal Discharge Rate	40A
Nominal Voltage	75 V
Charge Rate	35A Max
Operating Temperature	10°C - 45°C
Enclosure	IP 66
Weight	44kgs
BMS	Yes
Contactor	Yes
Fused	Yes
Dimension Requirements (DxWxH)	350mm (+-5mm) x 287mm (+-10mm) x 363mm (+-10mm)
Rated Duty cycle	3,000
Battery Limit	2.7V (min cutoff) 2.9V (low power mode) 3.3V (Voltage limit for the cells)
Battery Chemistry	Lithium Iron Phosphate (LFP)

Signature: Matthew Tilleard (Aug 28, 2024 13:30 GMT+3)

Email: matt.tilleard@crossboundary.com

Signature: Hezbon Mose
Hezbon Mose (Aug 28, 2024 20:10 GMT+3)

Email: mose.hezbon@ampersand.solar

CB Energy Services Agreement + Battery Lease - 22-8-2024 vF

Final Audit Report 2024-08-28

Created:	2024-08-27
By:	Tombo Banda (tombo.banda@crossboundary.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAdjCpeB8w2MoTbgFC-JCsxXeQm95BQMeT

"CB Energy Services Agreement + Battery Lease - 22-8-2024 vF " History

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Signer mose.hezbon@ampersand.solar entered name at signing as Hezbon Mose
2024-08-28 - 5:10:48 PM GMT

Document e-signed by Hezbon Mose (mose.hezbon@ampersand.solar)
Signature Date: 2024-08-28 - 5:10:50 PM GMT - Time Source: server

Agreement completed.
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